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Case Number: 25SMCV06542 Hearing Date: June 30, 2026 Dept: 205

Superior

Court of California

County

of Los Angeles – West District

Beverly Hills Courthouse / Department 205

ERIK ROMMEL BLACKWELL, JR. and WONDER

KWESI ABOR,

Plaintiffs,

v.

FLO MALCOLM; WORLDSTARHIPHOP, LLC; DOES

1-50,

Defendant.

Case No.: 25SMCV06542

Hearing Date: June 30, 2026

[TENTATIVE]

order RE:

defendantS' SPECIAL MOTION TO STRIKE

BACKGROUND

This

is a defamation, false light, infliction of emotional distress, and negligence case, arising from the publication, republication, and monetization of a video pertaining to Plaintiffs (Video). Plaintiffs Erik Rommel Blackwell, Jr. (Blackwell) and Wonder Kwesi Abor (Abor) (collectively Plaintiffs) allege that on or about December 24, 2021, Defendant Flo Malcolm posted a defamatory and fabricated video falsely accusing Plaintiffs of attempting to drug women with date-rape drugs. (Compl., ¶ 1.) Plaintiffs contend the video was then republished and promoted by Defendant WorldStarHipHop, LLC (WorldStar) to millions of viewers on multiple platforms. (Compl., ¶ 2.)

Plaintiffs

allege the allegations in the video were false, that the woman portrayed as the alleged victim later admitted in a private conversation that her accusations against Plaintiffs were the result of coercion and threats by Flo Malcolm, that the alleged victim put out a public retraction statement, and that despite Plaintiffs efforts to establish that the alleged incident never took place, WorldStar again republished the clip of Plaintiffs' alleged assault on May 7, 2025. (Compl., ¶¶ 3-4.) Plaintiffs allege that these actions resulted in reputational harm, loss of employment opportunities, online harassment, psychological trauma, post-traumatic stress disorder (PTSD), anxiety, depression, and financial loss.

On

December 17, 2025, Plaintiffs filed their complaint, asserting causes of action against all Defendants for (1) defamation (libel and slander), (2) false light invasion of privacy, (3) intentional infliction of emotional distress, (4) civil conspiracy, (5) aiding and abetting, (6) negligent infliction of emotional distress, and (7) injunctive relief. Against only WorldStar, Plaintiffs assert causes of action for (1) negligence and (2) negligent supervision or negligent publication. Against only Flo Malcolm, Plaintiffs assert causes of action for (1) civil extortion (attempted / completed) and (2) fraudulent misrepresentation.

On

February 10, 2026, Plaintiffs filed an amendment to the complaint, naming WSHH

Holdings, LLC as DOE 1.

On

February 23, 2026, Plaintiffs filed a request for dismissal as to Flo Malcom only, which was granted by the Court the same day.

On February

27, 2026, Plaintiffs filed a request for dismissal as to WorldStarHipHop only, also granted by the Court the same day.

On

April 1, 2026, Plaintiffs filed an ex parte application for an order vacating the dismissal of Flo Malcom on the grounds that the request for dismissal was due to inadvertent clerical error. The Court denied the request on the grounds that no exigency was shown.

On April

14, 2026, Plaintiffs again moved to vacate Flo Malcom's dismissal on the same grounds via a regularly noticed motion. The Court denied the motion for Plaintiffs' failure to provide sufficient proof of service of notice.

On

May 20, 2026, Plaintiffs filed a request for dismissal as to WorldStarHipHop, LLC only. Dismissal was entered the same day.

As

such, the only remaining Defendants in this case are WSHH Holdings, LLC (WSHH) and DOES 2-50.

On

May 26, 2026, WSHH, doing business as WorldStarHipHop (WorldStar) filed a special motion to strike the complaint.

On

June 23, 2026, Plaintiffs filed their opposition.

No

reply has been filed.

This

hearing is on WSHH's motion to specially strike each and every cause of action in the Complaint. Defendant argues that in republishing the Video, it was engaged in protected activity under California's anti-SLAPP statute, that Plaintiffs cannot establish a probability of prevailing on their claims, that Section 230 of the Communications Decency Act (CDA) bars claims based on WorldStar's republication of third-party content, that many of the claims are barred by the statute of limitations, and that Plaintiffs fail to allege facts showing actual malice. (Motion, p. 1:18-26.)

REQUEST FOR JUDICIAL NOTICE

WSHH

requests that this Court take judicial notice of *Eizinga v. MediaLab AI Inc.*, No. 0:25-cv-62684-DSL, Order Granting Defendant MediaLab.AI Inc.'s Renewed Motion to Dismiss Plaintiff's Amended Complaint Pursuant to Rule 12(b)(6), ECF No. 27 (S.D. Fla. May 11, 2026).

California

Evidence Code section 452 permits judicial notice being taken of records of any court of record of the United states or of any state of the United states and facts and propositions not reasonably subject to dispute and capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy. (Evid. Code., § 452, subd. (d), (h).) California Evidence Code section 453 mandates a court take judicial notice of a matter specified in section 452 if a party so requests, gives the adverse party sufficient notice through pleadings or otherwise, and furnishes the court with sufficient information to enable it to take judicial notice. (Evid. Code, § 453, subd. (a), (b).)

Here,

WSHH requests judicial notice be taken of an Order of the United States District Court in the state of Florida. The existence and contents of the Order are not subject to reasonable dispute and are capable of immediate and accurate determination as a publicly filed court document. WSHH has furnished a copy of the order and sufficient information for this Court to take judicial notice, and Plaintiffs have been given sufficient notice.

Accordingly,

WSHH's request for judicial notice is GRANTED.

LEGAL STANDARD

A strategic

lawsuit against public participation (SLAPP) “is a civil lawsuit that is aimed at preventing citizens from exercising their political rights or punishing those who have done so.” (Simpson Strong-Tie Co., Inc. v. Gore (2010) 49 Cal.4th 12, 21.) California Code of Civil Procedure section 425.16 authorizes “the filing of a special motion to strike to expedite the early dismissal of these unmeritorious claims.” “To encourage ‘continued participation in matters of public significance’ and to ensure ‘that this participation should not be chilled through abuse of the judicial process,’ the Legislature expressly provided that the anti-SLAPP statute ‘shall be construed broadly.’” (Ibid.)

“A

cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim.” (Code Civ. Proc., § 425.16, subd. (b)(1).) Acts protected under the statute include “(1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.” (Id., subd. (e).)

The

trial court applies a burden shifting analysis when considering a special anti-SLAPP motion to strike brought under section 425.16. (See Soukup v. Law Offices of Herbert Hafif (2006) 39 Cal.4th 260, 278, citing Navellier v. Sletten (2002) 29 Cal.4th 82, 88.) First, the moving party must make a threshold showing that the challenged cause of action arises from “any act of that person in furtherance of the person's right of

petition or free speech under the [federal or state constitution] with a public issue.” (Code Civ. Proc., § 425.16, subd. (b); see *Soukup*, supra, 39 Cal.4th at p. 278.) Second, if the moving party meets its threshold burden, the burden then shifts to the opposing party to demonstrate a probability of prevailing on the merits of the claims at issue. (*Equilon Enterprises v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, 67.)

For

mixed causes of action “involving allegations of both protected and unprotected activity, the plaintiff is required to establish a probability of prevailing on any claim for relief based on allegations of protected activity. Unless the plaintiff can do so, the claim and its corresponding allegations must be stricken.” (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 395.)

DISCUSSION

Plaintiffs’

Untimely and Procedurally Defective Opposition

Plaintiffs’ Opposition was filed

late on June 23, 2026 – five court days before the hearing on this motion. There also are multiple procedural deficiencies in the Opposition, as outlined in the late Reply filed by defendant. The late reply, however, is understandable given that Defendant’s reply would have been due on the same date Plaintiffs’ filed their Opposition. Plaintiff’s late and defective Opposition is, by itself, enough to justify granting Defendant’s motion. Nevertheless, the Court will proceed to consider that Opposition in the discussion below.

California’s

Anti-SLAPP Statute

WSHH argues that it was engaged in a protected activity pursuant to California’s anti-SLAPP statute. As the moving party, WSHH bears the burden of establishing that the conduct in question amounts to protected activity.

a. WSHH’s Burden – Establishing

Protected Activity Under the Anti-SLAPP Statute

The

moving party has the initial burden in bringing an anti-SLAPP motion “to demonstrate that the act or acts of which the plaintiff complains were taken ‘in furtherance of the [moving party]’s right of petition or free speech under the United States or California Constitution in connection with a public issue,’ as defined in the statute.” (*Jarrow Formulas, Inc. v. LaMarche* (2003) 31 Cal.4th 728, 733.) “There is no further requirement that the [moving party] initially demonstrate his or her exercise of constitutional rights of speech or petition was valid as a matter of law.” (*Soukup*, supra, 39 Cal.4th at p. 286 (citing *Navellier*, supra, 29 Cal.4th at pp. 94–95.).) Moving parties also face “no additional requirement of proving the plaintiff’s subjective intent” in filing the lawsuit or “demonstrat[ing] that the action actually has had a chilling effect on the exercise of such rights.” (*Navellier*, supra, 29 Cal.4th at 88.)

i.

Conduct on Which Plaintiffs’ Causes of Action Arise

In *Bonni*

v. St. Joseph Health Sys. (2021) 11 Cal.5th 995, the Supreme Court established that “courts should analyze each claim for relief—each act or set of acts supplying a basis for relief, of which there may be several in a single pleaded cause of action—to determine whether the acts are protected and, if so, whether the claim they give rise to has the requisite degree of merit to survive the motion.” (*Bonni*, supra, 11 Cal.5th at 1010.) In satisfying his burden, a moving party “must identify the acts alleged in the complaint that it asserts are protected and what claims for relief are predicated on them. In turn, a court should examine whether those acts are protected and supply the basis for any claims.” (*Ibid.*) “A defendant need only make a prima facie showing at this stage.” (*Ojeh v. Brown* (2019) 43 Cal.App.5th 1027, 1035–1036.)

WSHH

argues all causes of action asserted against it arise from the publication and republication of the Video to its online platform. (Motion, p. 3:1-4.) WSHH specifically argues that said publication and republication fall squarely within the ambit of protected activity as defined by California Code of Civil Procedure section 425.16, subdivisions (e)(3)-(4), which defines protected activity, in relevant part, as “any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest” and “any other conduct in furtherance of the exercise of the constitutional right of petition

or the constitutional right of free speech in connection with a public issue or an issue of public interest.”

In

opposition, Plaintiffs argue the case “arises from the publication, republication, promotion, endorsement, and monetization of false accusations.” (Opp., p.2:5-6.) Plaintiffs further contend WSHH acted as more than a passive host for third-party content, but rather, that WSHH actively participated in the development, creation, amplification, and dissemination of the defamatory narrative “by publishing its own headlines, captions, and editorial commentary.” (Opp., p. 2:9-12.)

The

Court notes that generally, the Complaint alleges that Defendant Flo Malcolm is the individual who recorded the Video, that WorldStar published, edited, captioned, monetized, and circulated the Video to a large audience, and DOES 1-50, including WSHH as DOE 1, “aided, abetted, promoted, monetized, or conspired to defame Plaintiffs.” (Compl., ¶¶ 12-14.) Each cause of action in Plaintiffs’ complaint directly references the publication and republication of the Video, captions, headlines, or commentary as the basis for the claim. Thus, the Court finds that all causes of action against WSHH directly arise from and relate to WSHH’s publication and republication of the Video, headlines, captions, and/or editorial commentary.

ii.

WSHH’s Publications Were Made in a Public Forum

WSHH

first avers its publications were statements made in a public forum as they were posted on the internet. In California, for purposes of the anti-SLAPP statute, it is well established that websites accessible to the public are considered public forums. (See *Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc.* (2005) 129 Cal.App.4th 1228, 1247 (disapproved on other grounds) [public forums not limited to physical settings and includes other forms of public communication; statements made on a website accessible to anyone who chose to visit the site could hardly be more public]; *Wilbanks v. Wolk* (2004) 121 Cal.App.4th 883, 895 [anti-SLAPP case found statements were posted to a public forum where posted on a public website]; *ComputerXpress, Inc. v. Jackson* (2001) 93 Cal.App.4th 993, 1007 [websites satisfied criteria of public forums where they constituted a ‘place that is open to the

public where information is freely exchanged.' (citing *Damon v. Ocean Hills Journalism Club* (2000) 85 Cal.App.4th 468, 475)].) Plaintiffs do not address this issue in their opposition.

Thus,

because WSHH's conduct in question is publication, republication, and creation of false statements made on its website and various social media platforms on the internet, the Court finds that the statements were made in a public forum.

iii.

WSHH's Publications Concerned a Matter of Public Interest

WSHH

next argues the content at issue concerns a matter of public interest. Courts will find that a statement concerns a matter of public interest where it falls into one of three categories: (1) the statement concerns a person or entity in the public eye, (2) the statement concerns conduct that could directly affect a large number of people beyond the direct participants, or (3) the statement concerns a topic of widespread, public interest. (*Rivero v. Am. Fed'n of State, Cty. & Mun. Emps., AFL-CIO* (2003) 105 Cal.App.4th 913, 924.)

WSHH

argues that its statements here concerned conduct endangering the public safety, which could directly affect a large number of people beyond the participating parties, is within the public interest (Motion, p. 4:23-25, 5:2-3.) WSHH points to the well-documented public safety concern of drug-facilitated assault in public social spaces in support of its characterization of the underlying conduct. (Id. at 5:3-5.) WSHH also points to the fact that the published content was viewed over 321,400 times, republished by multiple third parties, and high level of public engagement to demonstrate widespread public interest. (Id. at 4:24-28.)

The

Court also notes the apparent widespread discourse surrounding the content at issue and, while unfortunate, the "mob harassment" allegedly suffered by Plaintiffs as a result of the publication. (Hurt Decl., ¶ 8, Compl., ¶ 30.) Further, Plaintiffs have identified themselves as public figures within their communities, as Blackwell claims to be a professional entertainer and magician whose reputation is essential to his livelihood, and Abor claims to be a

respected public figure within his professional community. (Compl., ¶¶ 10-11.) In opposition, Plaintiffs do not argue that the published information was not a matter of public interest. Plaintiffs appear to concede this fact in their opposition. (Opp., p. 5:9-10.)

Nygard is instructive, as the court established that “cases and the legislative history that discusses them suggest that ‘an issue of public interest’ within the meaning of section 425.16, subdivision (e)(3) is any issue in which the public is interested. In other words, the issue need not be ‘significant’ to be protected by the anti-SLAPP statute—it is enough that it is one in which the public takes an interest.” (Nygard, Inc. v. Uusi-Kerttula (2008) 159 Cal. App. 4th 1027, 1042.)

Here, it is clear that the publications at issue garnered widespread attention, interest, and engagement from the public and that Plaintiffs have identified themselves as public figures. Thus, the publications fall within the three categories of statements held to concern a matter of public interest.

Accordingly, this Court finds that the statements and conduct of WSHH, specifically the publications and republication of the Video, headlines, commentary, and captions, pertain to a matter of public interest. Thus, WSHH has satisfied its burden of showing the conduct giving rise to Plaintiffs’ complaint and all causes of action therein constitutes protected activity pursuant to the anti-SLAPP statute. The burden thus shifts to Plaintiffs to make a showing of probability of success on the merits.

b.

Plaintiffs’

Burden – Establishing Probability of Success on the Merits

Once the court has found the moving party has made the requisite showing, “it then determines whether the plaintiff has demonstrated a probability of prevailing on the claim.” (Jarrow, supra, 31 Cal.4th at p. 733.) In considering whether the opposing party has met its burden, “[t]he court does not weigh evidence or resolve conflicting factual claims. Its inquiry is limited to whether the plaintiff has stated a legally sufficient claim and made

a prima facie factual showing sufficient to sustain a favorable judgment. It accepts the plaintiff's evidence as true, and evaluates the defendant's showing only to determine if it defeats the plaintiff's claim as a matter of law." (Sweetwater Union High Sch. Dist. v. Gilbane Bldg. Co. (2019) 6 Cal.5th 931, 940.)

Notably, it is well established that "[a]s to the second step inquiry, a plaintiff seeking to demonstrate the merit of the claim 'may not rely solely on its complaint, even if verified; instead, its proof must be made upon competent admissible evidence.'" (Id. at 940.) "[E]vidence may be considered at the anti-SLAPP motion stage if it is reasonably possible the evidence set out in supporting affidavits, declarations or their equivalent will be admissible at trial." (Id. at 940, 947.)

i.

First

Cause of Action – Defamation (Libel and Slander)

"A claim for defamation requires proof of a false and unprivileged publication that exposes the plaintiff 'to hatred, contempt, ridicule, or obloquy, or which causes him to be shunned or avoided, or which has a tendency to injure him in his occupation.'" (Civ. Code, § 45.) A statement is defamatory when it tends 'directly to injure [a person] in respect to his office, profession, trade or business, either by imputing to him general disqualification in those respects which the office or other occupation peculiarly requires, or by imputing something with reference to his office, trade, profession, or business that has a natural tendency to lessen its profits[.]' (Civ. Code, § 46, subd. 3.) Statements that contain such a charge directly, and without the need for explanatory matter, are libelous per se. (Civ. Code, § 45a.)" (McGarry v. University of San Diego (2007) 154 Cal.App.4th 97, 112.)

"The elements of a defamation claim are (1) a publication that is (2) false, (3) defamatory, (4) unprivileged, and (5) has a natural tendency to injure or causes special damage." (Wong v. Jing (2010) 189 Cal.App.4th 1354, 1369.) Because Plaintiffs are, admittedly and as discussed above, public figures for the purposes of the anti-SLAPP statute, WSHH may not be held liable for libelous statements against them unless they are both (1) actually false, and (2) made with malice. (Christian Research Institute v. Alnor (2007) 148

Cal.App.4th 71, 84.) The plaintiff “must demonstrate ‘actual malice’ by clear and convincing evidence.” (Ibid.) “Actual malice ‘is not measured by whether a reasonably prudent man would have published, or would have investigated before publishing. There must be sufficient evidence to permit the conclusion that the defendant in fact entertained serious doubts as to the truth of his publication.’ [Citation.] Lack of due care is not the measure of liability, nor is gross or even extreme negligence.” [Citation.] Thus, “mere failure to investigate the truthfulness of a statement, even when a reasonably prudent person would have done so, is insufficient” to demonstrate actual malice. [Citation.]” (Id., at 90.)

The

Court finds that Plaintiffs have failed to establish a probability of success on the merits based on the evidence presented. While it is true courts must consider the pleadings and must generally accept an opposing party’s evidence as true in deciding whether there is a showing of probability of success, unlike a demurrer, the Court does not generally accept all allegations of fact pleaded in a complaint as true in ruling on an anti-SLAPP motion. (See Sweetwater, supra, 6 Cal.5th at 940.)

Here, in

opposition, Plaintiffs only rely on the contents of their Complaint, and furnish only the Declaration of Dimitri D. Hurt (Hurt Declaration) as further evidence for the Court to consider and accept as true. No exhibits or further evidence is attached to the Hurt Declaration. In their opposition, Plaintiffs state they have provided sufficient evidence to prove a probability of success, but only reference specific allegations made in the complaint. (Opp., p. 7:12-8:24.) As established, Plaintiffs cannot rely on the allegations of their complaint in opposing the present motion, and must provide or point to evidence potentially admissible at trial to support their cause of action in opposing an anti-SLAPP motion. (Ibid.; see Abir Cohen Treyzon Salo, LLP v. Lahiji (2019) 40 Cal.App.5th 882, 887 [plaintiff failed to carry burden of showing claim had minimal merit where factual assertions were unsupported by any evidence in the record].)

Plaintiffs’

complaint alleges a number of facts which, if substantiated, may support this cause of action. However, the complaint itself only points to one tangible piece of evidence which may be admissible at trial, being the written documentation confirming the alleged victim’s admission that she had never been

drugged. (Compl., ¶ 28.) No other evidence is sufficiently referenced, identified, or provided in the complaint.

Turning

to the Hurt Declaration provided in opposition, the relevant evidence presented is as follows: (1) Hurt observed content portraying Plaintiffs as individuals who allegedly attempted to drug women with date-rape drugs and engaged in criminal and predatory conduct (Hurt Decl., ¶ 5); (2) Hurt observed statements made, published, or disseminated through WSHH's platform including "These Two Young Men Were Reportedly Trying To Drug A Group Of Women"; "Real Hero In Action? Brah Checked A Creep For Dropping A Date Rape Drug In Girls' Drinks"; and additional captions, headlines, and promotional statements characterizing Plaintiffs as individuals engaged in criminal conduct (Id. at ¶¶ 6-7); (3) the publications were disseminated to substantial audiences by WSHH and generated significant public engagement (Id. at ¶ 8); (4) Hurt became aware of information disputing the truthfulness of the accusations contained in the publications, including information indicating that the alleged victim disputed the accusations and denied Plaintiffs engagement in the alleged criminal conduct (Id., ¶ 11-12); and (5) Hurt reviewed information indicating the challenged publications remained available and continued to circulate after information disputing the accusations became available (Id. at ¶ 13.) The Hurt Declaration also states, generally, that he believes additional evidence concerning the publication is within WSHH's possession, custody, or control, but does not further identify the evidence. (Id., ¶ 18.)

The

Hurt Declaration, taken as fact and unrefuted by any reply, is insufficient to establish a probability of success on the merits. To start with, the Hurt Declaration does not establish malice. Neither the Hurt Declaration nor Plaintiffs' complaint provides or identifies any evidence that establishes that WSHH knew of the falsity of the publication or acted with reckless disregard as to the truth of the information. The Hurt Declaration vaguely establishes that Hurt reviewed information indicating the alleged victim disputed accusations and denied Plaintiffs' criminal conduct, but does not identify or provide the evidence reviewed, nor does it claim the information reviewed was presented to WSHH before the publication or republications, when it was presented, or acknowledge receipt. It also does not establish that the information reviewed as to falsity was public information sufficient to establish reckless disregard on behalf of WSHH. The vague references in the Hurt Declaration to information

available to him and the allegations within Plaintiffs' complaint, unsubstantiated by any additional evidence, are not sufficient to establish a minimal probability of success on the merits.

WSHH

also argues Plaintiffs' defamation claims are barred by the applicable statute of limitations. (Motion, p. 9:6-13.) An action for libel or slander must be brought within one year. (Code Civ. Proc., § 340, subd. (c).) "In California the accrual of causes of action growing out of the publication of defamatory or other tortious statements is governed by the single-publication rule. Under the rule, one cause of action will arise, and the statute of limitations will commence running, upon the first general publication or broadcast of a tortious statement, notwithstanding how many copies of the publication are distributed or how many people hear or see the broadcast. Any subsequent republication or rebroadcast gives rise to a new single cause of action." (Traditional Cat Assn., Inc. v. Gilbreath (2004) 118 Cal.App.4th 392, 395.) The single publication rule applies to statements posted on websites. (Ibid.)

Defendants

argue that because the action arises from a publication, republication, and monetization of a statement published on or about December 24, 2021, the defamation cause of action is barred by the statute of limitations because the complaint was not filed until December 17, 2025, more than four years later. (Motion, p. 9:6-13.) The Court agrees in part. While Plaintiffs argue their defamation claim is not barred due to the ongoing nature of monetization, dissemination, and republication of the content, the single-publication rule, in giving rise to a separate and distinct cause of action upon republication of allegedly defamatory statements, makes clear that defamation is not a continuing tort which extends the statute of limitations upon subsequent offenses. Further, it appears from the circumstances alleged by Plaintiffs that they were made aware of the publication rather promptly.

However, Plaintiffs

allege WSHH republished the Video on or around May 7, 2025. (Compl., ¶ 22.) Pursuant to the single-publication rule, subsequent republication gives rise to a new single cause of action for the republication. Thus, the Court finds that Plaintiffs cause of action for defamation is barred by the statute of limitations to the extent that the alleged defamation took place on or before December 16, 2024.

Notwithstanding

the maintenance of claims falling within the statute of limitations, because no proof was made upon competent admissible evidence, the Court finds that Plaintiffs have failed to meet their burden as to the first cause of action.

ii.

Second

Cause of Action – False Light Invasion of Privacy

“A ‘false

light’ cause of action is in substance equivalent to a libel claim, and should meet the same requirements of the libel claim, including proof of malice” if required. (Medical Marijuana, Inc. v. ProjectCBD.com (2016) 6 Cal.App.5th 602, 615-616.) Furthermore, California Code of Civil Procedure section 340, subdivision (c) also governs false light claims and imposes a one-year statute of limitations for said claims. Plaintiffs put forth the same evidence for their false light claim as they do for their defamation claim.

Accordingly,

for the reasons stated above, certain of Plaintiffs claims are barred by the one-year statute of limitations, and Plaintiffs have otherwise failed to establish minimal probability of success on the merits as to the second cause of action.

iii.

Third

and Ninth Causes of Action – Intentional and Negligent Infliction of Emotional Distress

“A cause

of action for intentional infliction of emotional distress requires: (1) extreme and outrageous conduct by appellants with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the appellants' outrageous conduct. [Citation.] Conduct is considered outrageous when it is ‘so extreme as to exceed all bounds of that usually tolerated in a civilized community.’ [Citation.].” (Belen v. Ryan Seacrest Productions, LLC (2021) 65 Cal.App.5th 1145, 1164.)

Plaintiffs

again rely solely on the allegations set forth in their complaint as to the third cause of action. No evidence has been presented, in the Hurt Declaration or otherwise, establishing intent or reckless disregard on behalf of WSHH. Furthermore, while Plaintiffs' claim specific emotional distress and suffering, no competent evidence has been submitted to the Court by way of declarations of either Plaintiff, medical records or history, diagnoses of medical conditions as alleged in the complaint, or any other affidavit or documentary showing.

As

to Plaintiffs' claim for negligent infliction of emotional distress, the Court notes that in California, "there is no independent tort of negligent infliction of emotional distress. [Citation.] 'The tort is negligence, a cause of action in which a duty to the plaintiff is an essential element.' (Ibid.) 'A claim of negligent infliction of emotional distress is not an independent tort but the tort of negligence to which the traditional elements of duty, breach of duty, causation, and damages apply.' [Citation.]" (Belen, supra, 65 Cal.App.4th at 1165.)

Here,

Plaintiffs failed to state a cause of action for negligence against WSHH in their complaint, as the complaint does not allege that WSHH owed them a duty or that said duty was breached. Furthermore, as with the above discussed causes of action, no evidence has been presented by Plaintiffs upon which a probability of success on the merits can be found.

WSHH

also argues Plaintiffs' intentional infliction of emotional distress and negligence-based claims are barred by the statute of limitations. (Opp., p.9:16-10:4.) Generally, any action for injury to an individual caused by the wrongful act or neglect of another must be brought within two years. (Code Civ. Proc., § 335.1.) Courts have held that a cause of action pertaining to emotional distress accrues "when the physical manifestations of the emotional trauma first appear." (Aldaco v. Tropic Ice Cream Co. (1980) 110 Cal.App.3d 523, 526.) With respect to both emotional distress causes of action, Plaintiffs' claim they have suffered "[p]sychological impairment requiring 3-5 years of treatment" as a result of WSHH's alleged conduct. (Compl., ¶ 56(f).) Plaintiffs also alleged they have both incurred "[t]herapy costs of \$50,000-\$75,000." (Compl., ¶ 32(c).)

Here,

the Court cannot definitively rule on whether these claims are time-barred. The complaint does not specify whether the 3-5 years of therapy is only for past psychological treatment, or if this figure includes ongoing and future treatment. Further, while the therapy costs incurred by Plaintiffs at the time of filing lean towards a reasonable inference that Plaintiffs have previously undergone psychological treatment for the emotional harm caused by WSHH's conduct, this inference lacks the certainty required to bar these claims on statute of limitations grounds.

Regardless, because Plaintiffs have failed to produce any competent evidence to support a minimal probability of success on the merits, Plaintiffs have failed to meet their burden as to the third and ninth causes of action.

iv.

Sixth

Cause of Action – Civil Conspiracy

Civil

conspiracy is “not an independent cause of action,” but a “theory of co-equal legal liability under which certain defendants may be held liable for ‘an independent civil wrong.’” (Navarrete v. Meyer (2015) 237 Cal.App.4th 1276, 1291.) “Under a conspiracy theory of recovery, liability depends on the actual commission of a tort.” (Ibid., emphasis added.)’ The elements of an action for civil conspiracy are the formation and operation of the conspiracy and damage resulting to plaintiff from an act or acts done in furtherance of the common design.” (Applied Equipment Corp. v. Litton Saudi Arabia Ltd. (1994) 7 Cal.4th 503, 511, citation omitted.)

Plaintiffs

assert there is reasonable probability they will prevail on their claims for civil conspiracy because they have alleged facts which support a reasonable inference that WSHH and dismissed Defendant Flo Malcolm acted in concert to publish, amplify, and profit from the accusations against Plaintiffs. However, Plaintiffs again failed to present any evidence of the commission of a tort. No evidence has been presented by way of declaration or otherwise as to the formation and operation of the conspiracy, nor the damage resulting to Plaintiffs.

Accordingly,

Plaintiffs fail to establish probability of success as to the sixth cause of action.

v.

Seventh

Cause of Action – Aiding and Abetting

“California

has adopted the common law rule for subjecting a defendant to liability for aiding and abetting a tort. “Liability may ... be imposed on one who aids and abets the commission of an intentional tort if the person (a) knows the other's conduct constitutes a breach of duty and gives substantial assistance or encouragement to the other to so act or (b) gives substantial assistance to the other in accomplishing a tortious result and the person's own conduct, separately considered, constitutes a breach of duty to the third person.’ [Citation.]” (Casey v. U.S. Bank Nat. Ass'n (2005) 127 Cal. App. 4th 1138, 1144.)

Here,

Plaintiffs fail to present evidence that an intentional tort was committed by Flo Malcolm. Additionally, the complaint itself does not properly allege the cause of action, as it fails to state that a duty was owed to them by Flo Malcolm, that the duty was breached by Flo Malcolm, or that WSHH knew Flo Malcolm's conduct constituted a breach of duty. Plaintiffs also present no evidence that WSHH provided substantial assistance or encouragement to Flo Malcom to act as alleged. Further, Plaintiffs fail to allege or establish with any evidence that WSHH owed a duty to Plaintiffs and that said duty was breached. Plaintiffs argue that direct evidence of an agreement is rarely available before discovery and that conspiracy allegations may be established through circumstantial evidence and reasonable inferences arising from coordinated conduct. (Opp., p. 15:13-16.) However, Plaintiffs' reliance on the allegations in their complaint, as discussed, is misplaced, and no declaration or affidavit setting forth the circumstantial evidence upon which Plaintiffs rely was proffered.

Accordingly,

Plaintiffs have failed to establish a probability of success as to the seventh cause of action.

vi.

Eleventh

Cause of Action – Injunctive Relief

“Injunctive

relief is a remedy and not, in itself, a cause of action, and a cause of action must exist before injunctive relief may be granted.” (Shell Oil Co. v.

Richter (1942) 52 Cal.App.2d 164, 168.) As discussed, Plaintiffs have failed to meet their burden as to all causes of action asserted against WSHH. Accordingly, Plaintiffs have failed to establish a probability of success in securing injunctive relief.

vii.

Fourth

and Fifth Causes of Action – Negligence and Negligent Supervision / Negligent Publication (Against WorldStar Only)

WorldStarHipHop

has been dismissed from the case. The complaint has been amended only to name WSHH as DOE 1, but has not been amended to replace WorldStar with WSHH, nor to assert the fourth and fifth causes of action against WSHH. Accordingly, these causes of action are not directed against WSHH and it has no grounds upon which to strike these causes of action.

viii.

Eighth

and Tenth Causes of Action – Civil Extortion (Attempted / Completed) and Fraudulent Misrepresentation (Against Flo Malcolm Only)

Flo

Malcolm has been dismissed from the case. The complaint has been amended only to name WSHH as DOE 1, but has not been amended to replace Flo Malcolm with WSHH, nor to assert the eighth and tenth causes of action against WSHH. Accordingly, these causes of action are not directed against WSHH and it has no grounds upon which to strike these causes of action.

ix.

WSHH's

Immunity under Section 230 of the CMA

The Court

acknowledges both parties' detailed and reasoned arguments as to WSHH's immunity pursuant to section 230 of the CMA. The Court notes that the court's ruling in *Eizenga v. MediaLab.AI Inc., et al.* is not binding on this Court, nor did it inform the Court's ruling on the above causes of action. As stated above, in analyzing the present motion, the Court is obligated to accept Plaintiffs' evidence as true and only evaluate WSHH's showing to determine whether it defeats Plaintiffs' claims as a matter of law. (*Sweetwater*, supra, 6 Cal.5th at 940.) While federal immunity of WSHH may bear weight on Plaintiffs' probability of success, because the Court found that Plaintiffs failed to support their causes of action with the requisite competent evidence, the Court presently declines to issue a ruling as to whether federal immunity under section 230 of the CMA applies to WSHH.

Accordingly,
the Court's ruling on this motion is not determinative of WSHH's section 230 immunity.

WSHH's Request for Attorney Fees

WSHH
requests attorney's fees and costs incurred and expected in association with the present motion in the amount of \$5,620.00.

"[A]
prevailing [moving party] on a special motion to strike shall be entitled to recover that [party]'s attorney's fees and costs." (Code Civ. Proc. § 425.16, subd. c(1).) "A party who partially prevails on an anti-SLAPP motion must generally be considered a prevailing party unless the results of the motion were so insignificant that the party did not achieve any practical benefit from bringing the motion. The determination whether a party prevailed on an anti-SLAPP motion lies within the broad discretion of the trial court." (*Mann v. Quality Old Time Serv., Inc.* (2006) 139 Cal.App.4th 328, 330)

Because
WSHH's motion is granted as to all causes of action asserted against it, WSHH is entitled to recover its attorney's fees and costs.

WSHH's
counsel Maurice D. Pessah (Pessah) has been licensed to practice law in California since 2021, and is currently licensed to practice law in six states.

(Pessah Decl., ¶ 3.) Pessah bills at an hourly rate of \$500 per hour. (Id., ¶ 7.) Pessah contends he spent 6.5 hours drafting the present motion at \$500 per hour, for a total of \$3,250, and expects to incur an additional \$1,250, reflecting an anticipated 2.5 hours in reviewing the opposition and drafting a reply, \$500 for one hour spent preparing for the hearing on this motion, and \$500 for one hour spent attending the hearing on this motion. (Id., ¶ 8.) Pessah contends WSHH will incur a total of \$125 in filing fees for the filing of this motion and to provide courtesy copies to the Court. (Id., ¶ 9.)

The

Court finds this to be a reasonable rate given Pessah's experience in civil litigation and the depth and length of the present motion and opposing papers. Thus, WSHH's request for attorney's fees is GRANTED in the requested amount of \$5,620, the amount requested less \$750 for 1.5 hours of time drafting a reply at \$500 per hour.

CONCLUSION AND ORDER

Based on the foregoing, the Court GRANTS Defendant WSHH Holdings, LLC's special motion to strike the causes of action in the complaint as to Defendant WSHH Holdings, LLC. Defendant's request for attorney's fees is GRANTED in the amount of \$5,620.

IT IS SO ORDERED.

DATED: June 30, 2026 _____

Edward
B. Moreton, Jr.

Judge
of the Superior Court